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CASE #	CASE NAME	HEARING NAME
CVRI2203209	WYNNE vs WYNNE	MOTION TO COMPEL

Tentative Ruling: Defendant/Cross-Complainant James Wynne's Motion to Compel Further Responses to FROG 15.1 and 17.1 is denied. To the extent James' requires contact information for any of the witnesses identified in FROG 17.1 and the Tatums have said contact information, the Tatums are to provide the contact information within 4 days.

As to Sanctions, they are denied.

A party may file a motion compelling a further response to interrogatories if it finds that the responses are inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (CCP § 2030.300(a).) In a motion to compel further responses to interrogatories, the burden is on the responding party to justify any objection or failure to answer the interrogatories fully. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

At issue are FROGs 15.1 and 17.1. On 12/8/2025, the court ordered the Tatums to supplement their responses to FROG 15.1(b) and (c) and 17.1. James now argues that "In their supplemental responses, the TATUMS failed to provide the 15(b) an (c) information for the factual allegations that they denied, and failed to provide the required subpart information for 17.1." (See James' Motion, p. 3:17-19.) James does not attach the supplemental responses to the motion and the motion merely states that, "...a more detailed discussion is included in the separate statement field herewith." The separate statement is formatted in such a way that makes James' position difficult to understand. This is further compounded by the failure to include the actual supplemental responses. That being said, each FROG at issue is addressed below.

FROG 15.1: James makes two arguments regarding why the supplemental response to FROG 15.1 is still deficient. First, James states the Tatums "...specifically chose to evade providing witness information by identifying the witnesses for each affirmative defense as 'All of the parties to this lawsuit and their attorneys of record.'" (See James' Separate Statement, p. 14:25-15:9.) Referring to "all parties" to the lawsuit and their attorneys is sufficiently responsive to FROG 15.1(b). Because the parties can be contacted via their attorneys of record, the Tatums are justified in not providing the address or telephone numbers for each party. To the extent James is arguing that the Tatums intentionally excluded witnesses that should have been identified, the court cannot compel a further response based on James' dissatisfaction with the response or belief that it is substantively incomplete.

Second, James take issue with the fact that the supplemental responses only address affirmative defenses and not denial of material allegations. (See James' Separate Statement, p. 15:10-13.) James does not identify which denied material allegations the Tatums failed to address. In opposition, the Tatums state their supplemental responses address the ten affirmative defenses and "seven denied material allegations." The Tatums also fail to provide their supplemental responses. Without citation to the

pleadings or further clarification of what James believes was omitted, it cannot be said that the supplemental response is not code compliant or warrants a further response. There is no specific argument regarding how the supplemental responses to FROG 15.1(c) regarding identification of documents is deficient. Per the separate statement, the Tatums appear to have removed the references to CCP § 2030.230 and identify documents by name. This is sufficient.

For these reasons, the court denies the request to compel further supplemental responses to FROG 15.1(b) or (c). Because James fails to support the argument regarding the failure to address the denial of material allegations or even identify any such denied material allegations, the court denies James' alternative request for an "...order that any factual allegations in the Second Amended Cross-complaint which are not addressed in the above response are deemed admitted..." (See James' Separate Statement, p. 16:1-6.)

FROG 17.1: James argues that the supplemental responses "essentially contain only one sentence factual responses" or refer to a single document, the Binding Term Sheet. (See James' Separate Statement, p. 37:19-26.) As typed in the Separate Statement, the supplement response to FROG 17.1 appears sufficient. For each RFA, the Tatums address the factual reasoning for the denial, identify the names of witnesses, and refer to documents by title rather than rely on CCP § 2030.230. James' argument amounts to his personal belief that there should be more facts, witnesses, and documents that support the Tatums' denial. But as with FROG 15.1, the court cannot compel a further response based on James' belief that information is being withheld. Unlike the initial response, the supplemental response respond to each subpart as required by FROG 17.1.

As to the issue of failure to provide an address and telephone number for the identified witnesses, as required by FROG 17.1(c), the response is substantially compliant and this hardly requires the Tatums to supplement the entire FROG 17.1 response. Pursuant to CCP § 2030.090(b), the court should order that to the extent James' requires contact information for any of the witnesses identified in FROG 17.1 and the Tatums have said contact information, the Tatums are to provide the contact information within 4 days rather than undergo the burden of supplementing the entire FROG 17.1 response.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502491	WILSON vs LUCIOUS	MOTION TO VACATE THE DISMISSAL

Tentative Ruling: Cross-Complainant's UNOPPOSED Motion to Vacate Dismissal is granted.

Order to Show Cause is set for 10/19/26, as to why sanctions not to exceed \$1,500.00 or dismissal should not be imposed for Failure to file request for entry of default of CROSS defendant JIMMY WILSON on CROSS-complaint pursuant to CRC 3.110(g) as to HEELA WARDAK.